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File No.: EXP202209013

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 2, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the COMMUNITY OF PROPERTY OWNERS A.A.A. (hereinafter the respondent). After notifying the agreement to initiate and analyzing the allegations presented, on April 16, 2024, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202209013

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: B.B.B. and C.C.C. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 9, 2022. The complaint is directed against the COMMUNITY OF PROPERTY OWNERS A.A.A. with NIF ***NIF.1. The reasons on which the complaint is based for an alleged violation of the principle of confidentiality are as follows:

The president of the community of property owners to which her daughter belongs published in a WhatsApp group of the said community a copy of a bank receipt containing the personal data of the complainant (name, surname, bank account number, and address). She states that she does not belong to that community of property owners, being a co-holder, along with her daughter, of the bank account from which the receipts of this community are paid. She provides a screenshot of the conversation held through the instant messaging application WhatsApp and of the receipt shared in pdf format.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the community of property owners A.A.A., so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on September 20, 2022, as stated in the acknowledgment of receipt in the file.

On October 19, 2022, this Agency received a response letter in which a certificate from the secretary-administrator of the community of property owners was provided, certifying that the WhatsApp group named "****GROUP.1" is not the result of a community agreement, but rather an initiative of an owner. It also states that the community has no control over what is published in the chat, nor does it take responsibility for its content or statements made therein. It further asserts that the Community of Property Owners is not the owner of the phone number.

On the other hand, it also presents a notarized record in which the president of the community expressly states the transcription of several WhatsApp conversations held with the complainant. Also via WhatsApp, it presents a transcription of conversations held with the "Group ***GROUP.1" to which screenshots of the private chat with the complainant were sent; however, at the time of the examination of said telephone device by the notary, those screenshots do not appear in the community chat as they had been deleted, so it cannot be credibly proven that those screenshots were sent to that chat.

THIRD: On November 11, 2022, by Agreement of the Director of the Spanish Agency for Data Protection, the complaints filed were archived. Once the reasons presented by the community of property owners were analyzed and considering that there are no rational indications of the existence of an infringement within the jurisdiction of the AEPD, it is deemed that the initiation of the sanctioning

procedure is not warranted.

On the same date, the resolution of the agreement was notified to the complainants and to the community of property owners A.A.A., allowing for the filing of an optional appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of the resolution, or directly an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, within two months.

FOURTH: On November 14, 2022, the complainant filed a reconsideration appeal against the previous resolution, alleging that her complaint was specifically directed against the individual who published the data and not against the community of property owners. She also emphasizes that, although the message has been deleted from the history of the WhatsApp messaging application, it remains on the devices of all group members, so this measure has no effect and nothing has been done to prevent her data from being used by third parties.

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On 07/20/2023, the Director of the Spanish Agency for Data Protection resolves to accept this appeal for reconsideration in order to continue the processing of the initial complaint.

FIFTH: On October 2, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Articles 5.1.f) and 32 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Articles 83.5 and 83.4 of the GDPR, respectively.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which, in summary, they made the following allegations:

- Denial of the facts and the validity of a screenshot as evidence of the publication of any data. They claim that it is a fragmentary sample of a WhatsApp conversation obtained through a screenshot from the complainant's device.
- Regarding the data on the receipt and the authorization to make it public, they argue that this document is a communication of a charge to the account by direct debit (the direct debit receipt is issued by the creditor, while the paying bank issues a communication of the charge). Therefore, this document is issued by the Bank and addressed to the complainant. It is she who sends it to the president of the community and it is she who authorizes its publication in the aforementioned group, as stated in the notarial record provided as documentary evidence along with the allegations submitted in 2022, in which it is expressly stated that the complainant says: "Show it to whoever you want, when you walk around the community, I have no objection. This way they can entertain themselves and leave me a peaceful day."
- Lack of any action by the Community of Owners since it is a conflict between private neighbors. It is alleged that the C.P. is neither the organizer nor the administrator of any WhatsApp group, nor has its creation been discussed in a meeting as a service, nor is it in any other way an official vehicle. Therefore, those participating in that group and those who have titled it "****GROUP.1" act in their own name and not on behalf of the C.P., and any intervention in that group by the president is in a personal capacity.
- The document consisting of a bank charge has never belonged to the Community of Owners. The responsible party and custodian of its documentation is its administrator, not the president, who is limited to organic representation and executing the agreements of the meeting.

SEVENTH: Attached as an annex is a list of documents in the proceedings.

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From the actions taken in the present proceedings and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The president of the community of owners A.A.A. is a member of the WhatsApp group "***GROUP.1".

SECOND: The president has shared in this WhatsApp group a private conversation with the complainant without their permission or consent.

THIRD: A copy of a bank receipt containing the personal data of the complainant: name and surname, customer account code of the financial entity, and postal address was also shared in this WhatsApp group.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations regarding the initiation agreement

In response to the allegations presented by the respondent, the following should be noted:

- Regarding the validity of a screenshot as evidence of the publication of any data:

Screenshots are photographs taken by a technological device. They can be offered as evidence, although it is advisable to accompany the electronic document where the screenshot is found, that is, the file should be provided in PNG or JPG format.

In this case, the complainant, along with the complaint document, submitted separately a copy in JPG format of the bank receipt that was shared in the WhatsApp application. This receipt shows the name and

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surnames, the client code, the postal address of the claimant, as well as the charge made to the account by order of the Community of Owners A.A.A. in concept of special assessment.

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Regarding the data in the receipt and the authorization to make it public as stated in the notarial act that was submitted as documentary evidence along with the written allegations:

According to the transcription of the message sent by the claiming party, it cannot be said that they are authorizing a dissemination of the conversation held with the president, but rather, at most, to its individual exhibition.

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Lack of any action by the Community of Owners since it is a conflict between private neighbors:

It is important to note that no owner may freely dispose of and at any time access the data of the Community of Owners. That is to say, there must be a justified reason to access the documentation of the community of owners by the other neighbors who do not hold the position of president.

It can then be deduced that the claimed party has access to the information of the bank receipts of the owners by virtue of their position as president of the community. The community of owners itself is the

one that holds the status of responsible for the processing carried out for the proper management and functioning of the community of owners under the horizontal property regime and is responsible for applying appropriate technical and organizational measures to ensure and demonstrate that the processing is in accordance with the GDPR.

As one of the governing bodies, which holds the legal representation of the Community, according to Article 13.3 of the LPH, the President must comply with the mandates, act diligently, and execute the agreements adopted by the Owners' Meeting, and may be held liable in the event of an alleged overreach in the exercise of their duties.

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The document consisting of a bank charge has never belonged to the Community of Owners: It should be noted that the Community of Owners holds the status of "data controller" (Article 4 point 7 of the GDPR), regardless of whether access to the images was made by a governing body of the same, without the reasons for access and obtaining the images being clarified to date.

III

Unfulfilled obligation

The known facts are considered constitutive of an infringement, attributable to the community of owners A.A.A., regulated in Article 5.1.f) of the GDPR and another infringement of Article 32 of the GDPR.

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Firstly, Article 5 of the GDPR establishes the principles that must govern the processing of personal data and, secondly, Article 32 of the GDPR regulates the security of processing.

IV.

Article 5.1.f)

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In accordance with the evidence available at this moment of the proposal for resolution of the sanctioning procedure, it is considered that the community of owners A.A.A. has processed personal data of the claiming party, without adopting the measures required by the regulations on the protection of personal data, as a receipt from a banking entity containing the name, surnames, account number, and address of the claiming party was disseminated via the instant messaging application WhatsApp, violating the confidentiality in the processing of personal data, and therefore this fact is considered constitutive of an infringement for violation of Article 5.1.f) of the GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" states:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as

well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Very serious infringements” of the LOPDGDD indicates:

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“1. Based on the provisions of Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious violations and shall be subject to a three-year statute of limitations for substantial breaches of the articles mentioned therein, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”.

VI

Sanction for the violation of Article 5.1(f) of the GDPR

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to calibrate the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR.

Article 83.2 of the GDPR establishes that:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, including any aggravating or mitigating factors applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringements committed by the controller or processor;

f) the degree of cooperation with the supervisory authority to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved pursuant to Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In this case, it is considered that the sanction that would correspond to be imposed would be ONE THOUSAND FIVE HUNDRED EUROS (€1,500) for the infringement of Article 5.1(f) of the GDPR.

VII

Article 32 of the GDPR

Article 32 “Security of Processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the confidentiality, integrity, availability, and permanent resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller.”

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instructions of the controller, unless required to do so under Union or Member State law.”

The security of data requires the application of appropriate technical or organizational measures in the processing of personal data to protect such data against access, use, modification, dissemination, loss, destruction, or accidental, unauthorized, or unlawful damage.

Therefore, security measures are key to guaranteeing the fundamental right to data protection. The existence of the fundamental right to data protection is not possible if confidentiality, integrity, and availability of such data cannot be guaranteed.

In this case, there is no evidence that the homeowners' association A.A.A. had reasonable security measures in place based on the estimated potential risks of having shared the personal data of a homeowner through a community WhatsApp group, resulting in an undue dissemination of such data. Therefore, in accordance with the evidence available in this proposal for resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement for violation of Article 32 of the GDPR.

VIII

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.” (...)

IX

Sanction for the infringement of Article 32 of the GDPR

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is necessary to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, previously transcribed.

In this case, it is considered that the sanction that would correspond to be imposed would be FIVE HUNDRED EUROS (500 €) for the infringement of Article 32 of the GDPR.

X

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

In particular, it is urged that within 1 month from the notification of the resolution of this procedure, it be evidenced that appropriate measures have been adopted to prevent incidents like those that led to the opening of the procedure in the future, ensuring the confidentiality of the data and avoiding the publication of documents containing debts related to neighbors/community members and their identification in places not established or indicated by law.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could motivate such conduct to open a further sanctioning administrative procedure.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued.

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That the Director of the Spanish Agency for Data Protection sanctions

COMMUNITY OF OWNERS A.A.A., with NIF ***NIF.1, for the infringement of

Article 5.1.f) of the GDPR, classified under Article 83.4 of the GDPR, with a fine of ONE THOUSAND FIVE HUNDRED EUROS (1,500 €) and for the infringement of Article 32 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of FIVE HUNDRED EUROS (500 €), totaling TWO THOUSAND EUROS (2,000 €).

That the Director of the Spanish Agency for Data Protection orders

COMMUNITY OF OWNERS A.A.A., with NIF ***NIF.1, to, pursuant to Article 58.2.d) of the GDPR, within a period of 1 month, prove that it has adopted appropriate measures to prevent future incidents like those that led to the initiation of the procedure, ensuring the confidentiality of the data and avoiding the publication of documents containing debts related to neighbors/co-owners and their identification in places not established or indicated by law.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be established at ONE THOUSAND SIX HUNDRED EUROS (1,600 €) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding

measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, it must send the proof of payment to the General Sub-Directorate of Inspection to proceed to close the file.

By virtue of this, you are notified of the above, and the procedure is made known so that within TEN DAYS you may state whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.

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D.D.D.

INSPECTOR/INSTRUCTOR

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ANNEX

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10/08/2022 Complaint from B.B.B.

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02/09/2022 Transfer of complaint to COMMUNITY OF OWNERS A.A.A.

19/10/2022 Document from CP A.A.A.

11/11/2022 Resolution to B.B.B.

11/11/2022 Resolution to C.C.C.

11/11/2022 Resolution to COMMUNITY OF OWNERS A.A.A.

12/11/2022 Appeal for reconsideration from C.C.C.

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27/04/2023 Request for a copy of the file from C.C.C.

08/05/2023 Appeal for reconsideration from E.E.E.

09/05/2023 Sending of doc. 3 to C.C.C.

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21/07/2023 Resolution to B.B.B.

21/07/2023 Resolution to C.C.C.

02/10/2023 Agreement to initiate with COMMUNITY OF OWNERS A.A.A.

18/10/2023 Allegations from F.F.F.

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SECOND: On April 27, 2024, the defendant party proceeded to pay the sanction in the amount of 1,600 euros, making use of the reduction provided in the previously transcribed resolution proposal.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

FOURTH: In the previously transcribed resolution proposal, the constitutive facts of the infringement were verified, and it was proposed that, by the Director, appropriate measures be imposed on the

responsible party to adjust its actions to the regulations, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

LEGAL GROUNDS

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Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the termination of procedure EXP202209013, in accordance with the provisions of Article 85 of the LPACAP.

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SECOND: TO ORDER the COMMUNITY OF OWNERS A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution, within a period of 1 month from the date this resolution becomes final and executable.

THIRD: TO NOTIFY this resolution to the COMMUNITY OF OWNERS A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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